Comprehensive Analysis of Cryptocurrency Taxation under Polish Law: PIT-38 Reporting and Capital Gains Classification (Tax Years 2023–2025)

The regulatory framework governing the taxation of virtual currencies in the Republic of Poland is highly specific, having undergone systemic standardization since 2019. The Polish Personal Income Tax Act (Ustawa o podatku dochodowym od osób fizycznych, hereinafter "the PIT Act") classifies virtual currencies within a distinct, highly compartmentalized category of capital gains. For a taxpayer relocating their tax residency to Poland—such as transitioning from Sweden in 2023—and operating across multiple centralized exchanges (Binance, Kraken) as well as decentralized, self-custody wallets on varied blockchains (Bitcoin, Ethereum, Polkadot, Kusama, Solana, Sui), navigating this regime requires meticulous statutory interpretation.

This analysis provides an exhaustive, expert-level breakdown of the mechanisms governing taxable events, passive income generation, the treatment of distressed assets, the mechanics of cost pooling, and the rigorous evidentiary standards required for the PIT-38 annual declaration for the 2023, 2024, and 2025 tax years. The assessment incorporates jurisprudential developments, administrative interpretations by the National Revenue Information (Krajowa Informacja Skarbowa - KIS), and the exact statutory mechanics dictated by the PIT Act.

1. Statutory Classification and the Concept of Virtual Currencies

Under Polish law, the taxation of digital assets fundamentally relies on the statutory definition of a "virtual currency." According to Article 5a point 33a of the PIT Act, the tax code adopts the definition provided in the Act on Counteracting Money Laundering and Terrorist Financing (AML Act).[1] Virtual currencies are defined as digital representations of value that are not legal tender issued by central banks, are not electronic money, and are not financial instruments, but which can be transferred, stored, and traded electronically.[1]

The defining characteristic of the Polish cryptocurrency tax regime is the strict isolation of these capital gains. Pursuant to Article 17 paragraph 1 point 11 of the PIT Act, revenues derived from the paid disposal of virtual currencies are classified exclusively as revenues from capital gains (kapitały pieniężne).[3] However, the legislature enacted a strict firewall around these assets. Article 30b paragraph 5d of the PIT Act explicitly prohibits combining incomes or losses derived from virtual currencies with other capital gains, such as those derived from traditional equities, bonds, mutual funds, or derivative instruments.[3] Consequently, cryptocurrency-related financial activities exist within a segregated fiscal silo. A loss in traditional stock trading cannot offset a

gain in Bitcoin, nor can excess cryptocurrency acquisition costs shield traditional equity profits. The flat tax rate applied to the income generated within this isolated silo is 19%.[3]

2. Tax Residency Transition and Unlimited Tax Liability

When an individual relocates to Poland and establishes tax residency, they become subject to unlimited tax liability under Article 3 paragraph 1 and 1a of the PIT Act.[7] This means they are taxable in Poland on their worldwide income, regardless of where the revenue is sourced or where the centralized exchange is domiciled. The transition from Swedish to Polish tax residency in 2023 introduces critical considerations regarding historical assets.

Assets acquired prior to establishing Polish tax residency (e.g., Bitcoin purchased with EUR on Kraken in 2020 or 2021 while residing in Sweden) are not subject to an entry tax, nor does the act of crossing the border trigger a taxable event. The Polish tax authorities acknowledge the continuity of the asset's cost basis. Interpretations issued by the Director of the KIS confirm that documented fiat expenditures incurred to acquire virtual currencies while the taxpayer was a resident of a foreign jurisdiction remain fully valid and deductible costs of obtaining revenue in Poland, provided they are properly documented and converted to Polish Złoty (PLN).[8] The mechanics of translating this foreign, pre-residency cost basis into the Polish PIT-38 declaration are complex and form the foundation of the taxpayer's initial filings in the Republic of Poland.

3. Delineation of Taxable and Non-Taxable Events

The determination of what constitutes a taxable event under the Polish system relies entirely on the statutory definition of "paid disposal" (odpłatne zbycie). Polish law deliberately restricts taxation to events where virtual currencies intersect with the traditional, non-crypto economy.

3.1. Events Constituting Paid Disposal (Taxable at 19%)

Article 17 paragraph 1f of the PIT Act provides an exhaustive, closed catalog of scenarios that trigger a taxable event.[2] The paid disposal of virtual currencies occurs strictly when a virtual currency is exchanged for one of the following:

- **Legal Tender (Fiat Currency):** The most common taxable event is the sale of cryptocurrency for state-backed fiat currency, such as EUR, PLN, or USD.[3] Whether this occurs on a centralized exchange like Binance or Kraken, or via an over-the-counter (OTC) desk, the conversion of digital assets to fiat instantly crystalizes a taxable revenue event.[2]
- **Goods or Services (Barter Transactions):** Utilizing cryptocurrency directly as a medium of exchange to purchase commercial goods or services triggers taxation. The Polish tax code treats this as a barter transaction. It is legally interpreted as a simultaneous disposal of the cryptocurrency at its market fiat equivalent, followed by the purchase of the good or service.[3] For example, paying for a laptop directly with Bitcoin constitutes an odpłatne zbycie of that Bitcoin.
- **Property Rights (Other than Virtual Currencies):** Exchanging cryptocurrency for

traditional real estate, intellectual property rights, or non-fungible tokens (NFTs)—provided the NFTs are classified as property rights rather than standard virtual currencies—constitutes a taxable event.[2]

- **Settlement of Liabilities:** Utilizing cryptocurrency to extinguish a pre-existing fiat-denominated debt or obligation is treated as a paid disposal.[2]

Transaction Type	Example Scenario	Tax Classification under PIT Act
Crypto to Fiat Sale	Selling 1 BTC for 60,000 EUR on Kraken	**Taxable** (Art. 17 ust. 1f)
Crypto for Goods	Buying a car directly with Solana (SOL)	**Taxable** (Barter equivalent)
Stablecoin to Fiat	Converting USDC to EUR via Binance Convert	**Taxable** (Fiat conversion)
Debt Settlement	Paying a PLN-denominated invoice using Ethereum	**Taxable** (Settlement of liability)

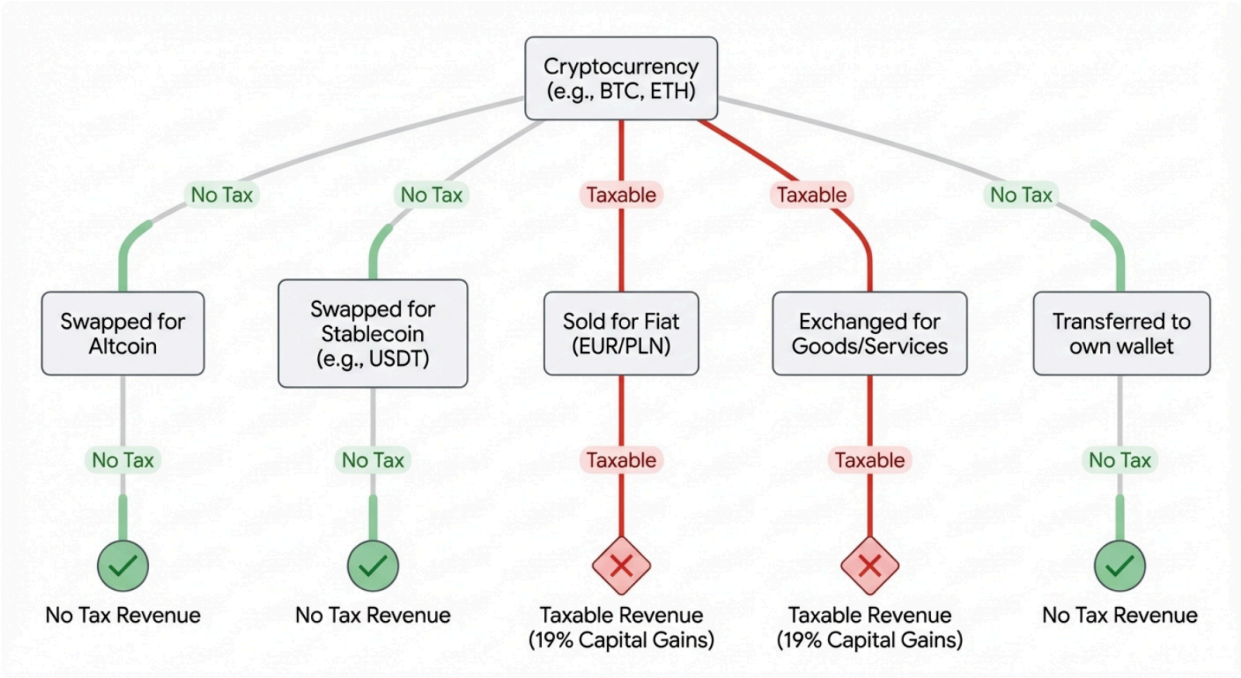
3.2. Tax-Neutral Events (The Safe Harbors)

A critical feature of the Polish system, enacted during the 2019 tax reform to prevent the overwhelming administrative burden of taxing high-frequency algorithmic trading, is the strict neutrality of crypto-to-crypto swaps.

- **Cryptocurrency to Cryptocurrency Swaps:** The exchange of one virtual currency directly for another virtual currency (e.g., swapping Bitcoin for Ethereum, or Polkadot for Kusama) is entirely tax-neutral.[3] The transaction generates no recognized revenue, and no deductible cost is crystalized at the moment of the swap.[11] The asset simply changes its digital form without interacting with the traditional economy.
- **Wallet and Exchange Transfers:** Depositing fiat into an exchange, withdrawing cryptocurrency from Binance to a self-custody hardware wallet (like a Ledger), or transferring assets between different blockchain networks (bridging) are non-events for tax

purposes. No disposal occurs because the taxpayer retains ultimate ownership of the asset.[13]

Tax Classification of Cryptocurrency Transactions in Poland



Under Art. 17 ust. 1f of the PIT Act, only transactions bridging virtual currencies with fiat currencies, goods, services, or non-crypto property rights trigger a 19% capital gains tax liability.

3.3. The Status of Stablecoins (USDT, USDC)

The treatment of stablecoins such as Tether (USDT) and USD Coin (USDC) is often a source of confusion, particularly in light of evolving European Union regulations like MiCA, which attempts to classify certain stablecoins as e-money. However, under the current interpretative consensus of the Polish National Revenue Information, stablecoins meet the statutory definition of virtual currencies.[14]

Consequently, converting a highly volatile asset like Bitcoin to a stablecoin like USDT, or swapping USDT for USDC, remains a fully neutral crypto-to-crypto transaction.[14] The Polish tax code does not recognize the peg to a fiat currency as equivalent to the fiat currency itself. Therefore, a taxpayer holding wealth in USDC has not yet realized a taxable event. The taxable event only occurs when the USDC is eventually converted into actual EUR, USD, or PLN, or transferred to a bank account.[10]

Transaction Type	Example Scenario	Tax Classification under PIT Act
Crypto to Stablecoin	Swapping BTC for USDT on Binance	**Neutral** (Crypto-to-crypto)
Stablecoin to Stablecoin	Swapping USDT for USDC	**Neutral** (Crypto-to-crypto)
Wallet Transfer	Moving ETH from Kraken to Metamask	**Neutral** (No disposal)
Fiat Deposit	Depositing 10,000 EUR to Kraken	**Neutral** (Capital allocation)

3.4. Intersections with Gift and Inheritance Tax

Transferring cryptocurrency as a gift introduces a jurisdictional overlap between the PIT Act and the Inheritance and Gift Tax Act (Ustawa o podatku od spadków i darowizn). For the donor sending the cryptocurrency, the act of gifting does not constitute a "paid disposal" because no remuneration is received; therefore, it is neutral under the PIT Act.[15]

For the recipient, the arrival of the gifted cryptocurrency falls under the jurisdiction of the Inheritance and Gift Tax Act.[15] Depending on the familial relationship between the donor and the donee (Tax Groups I, II, or III), the gift may be entirely exempt (e.g., immediate family under Group 0, provided the SD-Z2 form is filed within six months) or subject to a progressive gift tax.[16]

However, a severe income tax complication arises when the donee eventually decides to sell the gifted cryptocurrency for fiat. Because the donee acquired the asset for free via a gift, Polish tax authorities routinely issue interpretations stating that the donee's deductible acquisition cost basis is zero.[15] Consequently, when the donee executes a paid disposal, the entire gross revenue from the sale is subjected to the 19% capital gains tax on their PIT-38 declaration, effectively taxing the principal value of the gift.[15]

4. Passive Income: Staking, Airdrops, and DeFi Earn

Platforms

For a taxpayer holding assets on Proof-of-Stake networks (such as Polkadot, Kusama, Ethereum, Solana, and Sui) or utilizing centralized yield-bearing platforms like Binance Simple Earn, the generation of passive income introduces the most intensely litigated area of Polish cryptocurrency taxation. There is a profound schism between the rigid administrative interpretations of the tax authorities and the textualist rulings of the administrative courts.

4.1. The Administrative Doctrine: Taxation Upon Receipt

The Director of the National Revenue Information (KIS) maintains a highly aggressive stance on passive crypto income. Through a continuous stream of individual tax rulings issued throughout 2024 and 2025 (e.g., 0112-KDIL2-2.4011.146.2024.2.IM and 0112-KDIL2-2.4011.234.2025.3.AA), the KIS asserts that rewards derived from staking protocols, governance airdrops, and DeFi/CeFi interest programs generate taxable revenue at the exact moment the new tokens are credited to the taxpayer's wallet.[2]

The legal theory underpinning the KIS doctrine bypasses the capital gains framework entirely. The KIS argues that because virtual currencies are statutorily recognized as "property rights" (prawa majątkowe) under civil law, the acquisition of new tokens for free (an airdrop) or in exchange for locking capital (staking or Binance Simple Earn) constitutes the receipt of an uncompensated or partially compensated benefit.[2] Under Article 11 paragraph 1 and Article 18 of the PIT Act, this constitutes revenue from property rights (or "other sources").[2]

If a taxpayer chooses to comply with the KIS doctrine, the administrative burden is severe:

1. **Valuation:** The taxpayer must determine the fair market value of the received tokens on the exact day of receipt, converting that value to PLN using the NBP exchange rate from the preceding business day.[2]
2. **Filing and Rate:** This income is not reported on the PIT-38 form. Instead, it must be reported annually on the **PIT-36** form and added to the taxpayer's general income, subjecting it to the progressive tax scale of 12% or 32% (plus a potential 4% solidarity surcharge if total income exceeds 1 million PLN).[2]
3. **Prevention of Double Taxation:** To prevent taxing the same value twice, the KIS allows the value previously declared as income on the PIT-36 to become the deductible cost basis when the tokens are eventually sold for fiat.[2] Upon eventual sale, the transaction falls under Article 17, is reported on the PIT-38, and the 19% rate applies only to the capital appreciation that occurred between the moment of receipt and the moment of sale.[2]

4.2. The Judicial Paradigm: Taxation Deferred Until Disposal

Conversely, Polish administrative courts have repeatedly struck down the KIS interpretation, offering a paradigm highly favorable to the taxpayer. Rulings such as the Voivodeship Administrative Court in Warsaw (III SA/Wa 179/24, March 2024) rely on the principle of statutory

strictness and the prohibition of expansive interpretation in tax law.[2]

The courts note that Article 17 paragraph 1f of the PIT Act provides a specific, exhaustive framework for taxing virtual currencies, centered exclusively on "paid disposal." The mere receipt of a staking reward or an airdrop into a wallet does not constitute a disposal.[2] Furthermore, the courts highlight that the PIT Act provides no statutory methodology for valuing the receipt of highly volatile, illiquid crypto assets that have not yet been exchanged for fiat.[2] Attempting to tax the receipt forces the tax authority into arbitrary estimation, which violates constitutional principles of legal certainty.[2]

Under the judicial view, staking rewards, airdrops, and Simple Earn interest are completely tax-neutral upon receipt.[2] The taxpayer assigns them a cost basis of zero. A tax liability only materializes when these specific tokens are eventually sold for fiat, at which point the entire gross sale value is taxed at the flat 19% rate on the PIT-38 form.[2]

Feature	**Administrative View (KIS Doctrine)**	**Judicial View (Court Rulings)**
Moment of Taxation	Instantly upon receipt of tokens into wallet	Deferred until tokens are sold for fiat
Tax Form Used	PIT-36 (at receipt) + PIT-38 (at disposal)	PIT-38 exclusively (at disposal)
Applicable Tax Rate	Progressive scale (12% / 32%) at receipt	Flat capital gains rate (19%) at disposal
Cost Basis Established	Market value on day of receipt (converted to PLN)	Zero (0 PLN)
Compliance Risk	Zero risk of KIS challenge	High risk of audit; requires court defense

For a taxpayer operating in 2024 and 2025, deciding how to handle passive income requires a

strategic risk assessment. Relying on the court precedents (deferring taxation until disposal) is economically rational and administratively simpler, but carries the distinct risk of a tax audit, requiring the taxpayer to formally challenge the KIS and potentially escalate the matter to the administrative courts. Complying with the KIS doctrine minimizes audit risk but maximizes the immediate tax burden and accounting complexity.

5. Distressed Assets and Protocol Collapses (Celsius, BlockFi, Terra)

The systemic failures of centralized lending platforms (such as Celsius Network and BlockFi) and algorithmic stablecoin ecosystems (Terra/UST) have left many investors with locked, bankrupt, or entirely evaporated assets. Under Polish law, the treatment of such distressed assets within the PIT-38 framework relies on a rigid interpretation of what constitutes a "loss" versus an "unutilized cost."

5.1. The Legal Impossibility of a Crypto "Loss" Event

A fundamental, counter-intuitive axiom of Polish cryptocurrency taxation is that the loss of access to an asset does not constitute a taxable event. Whether funds are locked in a Chapter 11 bankruptcy proceeding (Celsius), stolen in a smart contract exploit, or rendered inaccessible due to a lost private key, none of these scenarios meet the statutory definition of an "odpłatne zbycie" (paid disposal) under Article 17 paragraph 1f.[19]

Because no disposal has occurred, the taxpayer cannot recognize a capital loss in the traditional financial sense. It is legally impossible to claim the market value of the lost assets at the time of the collapse as a deduction against other gains.[19] Furthermore, unlike traditional corporate taxation, the PIT Act's provisions for writing off unrecoverable debts do not apply to virtual currency holdings of private individuals.

5.2. The Preservation of the Fiat Cost Pool

While the digital asset itself may be inaccessible or worthless, the Polish tax system provides a powerful protective mechanism regarding the fiat currency originally expended to acquire it. The fiat used to buy the crypto (e.g., the EUR used to purchase Bitcoin that was subsequently deposited into BlockFi) retains its status as a fully valid, documented cost of obtaining revenue.[3]

Under the Polish mechanism of cost pooling (detailed in Section 6), these historical fiat expenditures remain safely preserved in the taxpayer's cumulative cost pool. For example, if the taxpayer spent 50,000 PLN buying Ethereum that is now locked in Celsius, that 50,000 PLN is reported as a cost in the PIT-38 for the year the purchase was made. Since no corresponding revenue was generated from the sale of those specific coins, the 50,000 PLN becomes an "unutilized cost" (nadwyżka kosztów).[20]

This unutilized cost carries forward indefinitely to subsequent tax years.[20] It acts as a permanent tax shield against future profits derived from completely unrelated successful investments on platforms like Binance or Kraken.

If, years later, a bankruptcy estate (e.g., the Celsius restructuring plan) distributes recovery funds in fiat currency to the taxpayer, the receipt of that fiat constitutes a standard taxable revenue event (paid disposal) in the specific year of disbursement, which can be immediately offset by the preserved historical costs.[11]

6. The Architecture of Cost Basis: Debunking the FIFO Myth

The methodology for calculating deductible costs is the area of highest friction for taxpayers utilizing international crypto-tax reconciliation software. Most global software platforms default to First-In, First-Out (FIFO), Last-In, First-Out (LIFO), or Specific Identification algorithms to match the cost of an asset to its eventual sale. The Polish statutory mechanism operates on an entirely different, highly aggregated paradigm.

6.1. The Inapplicability of FIFO for Virtual Currencies

There is a widespread misconception that Poland requires the FIFO method for cryptocurrencies. This stems from a misreading of Article 30b paragraph 6a of the PIT Act, which mandates the FIFO method when it is impossible to identify specific participation units in traditional capital funds being redeemed.[3]

However, official guidelines and interpretations from the National Revenue Administration (KAS) explicitly clarify that there is no legal basis to apply the FIFO method to the trading of virtual currencies by individuals not conducting registered business activities.[21] Because cryptocurrencies are infinitely divisible and fungible across hundreds of wallets, attempting to track the specific provenance of a fraction of a Bitcoin sold today back to a specific purchase years ago is not required.

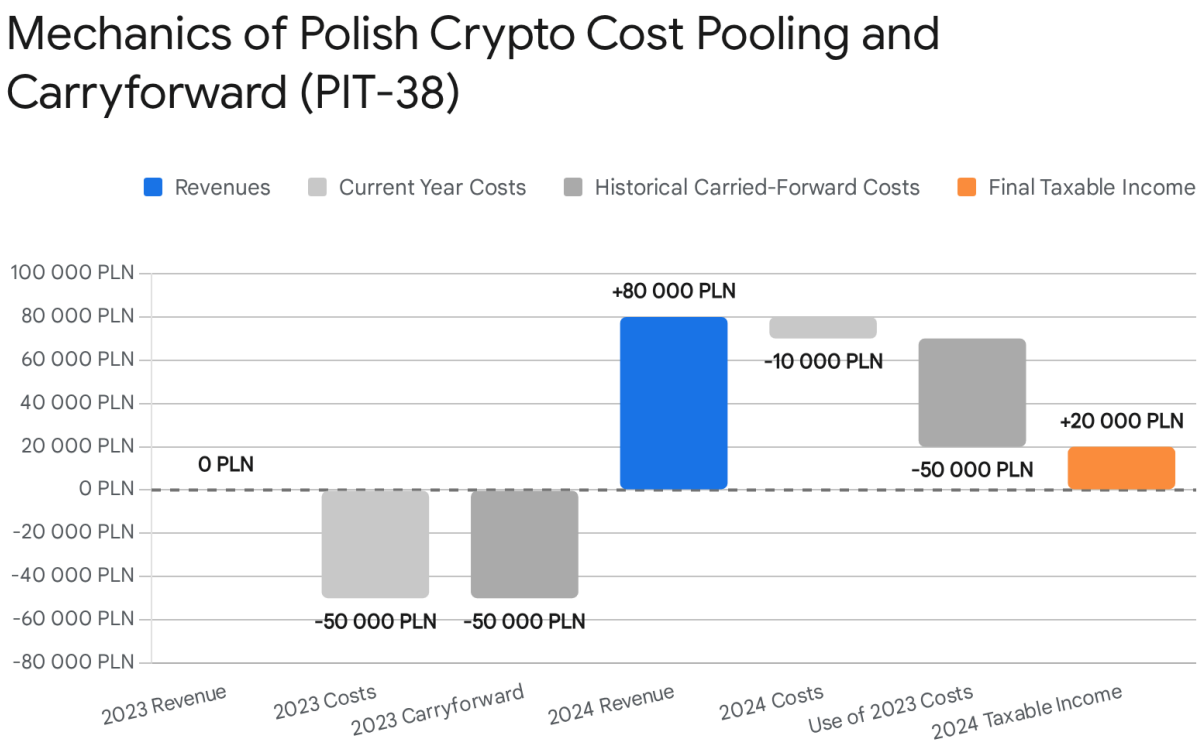
6.2. The Global Cost Pooling Mechanism

Instead of per-asset tracking, the Polish system utilizes a simplified **global cash-flow pooling mechanism**.[11] The calculation divorces the specific asset from its cost, focusing entirely on the aggregate flow of fiat currency.

1. **Aggregate Annual Costs:** All documented fiat expenditures made to acquire *any* cryptocurrency across *all* exchanges in a given calendar year are aggregated into a single, massive cost pool.[11] The system does not care if the taxpayer bought Bitcoin, Solana, or Sui; 1,000 EUR spent is simply 1,000 EUR of crypto acquisition cost.
2. **Aggregate Annual Revenues:** All fiat received from the sale of *any* cryptocurrency across all platforms in that same year is aggregated into a single revenue pool.
3. **The Net Calculation:** At the end of the tax year, the taxpayer subtracts the total annual cost pool (plus any unused costs carried forward from previous years) from the total annual revenue pool.

Consequently, the taxpayer never needs to prove *which* specific Ethereum they sold. They only

need to prove the total sum of fiat they expended to acquire virtual currencies.[11] If total fiat expenditures in 2024 exceed total fiat revenues, the taxable income is zero, and the excess cost rolls over to 2025 as a tax shield.



In Poland, crypto costs are not matched to specific assets sold (no FIFO). All fiat spent on crypto in a year forms a cost pool. Unused costs roll forward indefinitely to shield future revenues.

Data sources: e-pity.pl, podatki.gov.pl, Divly

6.3. The Treatment of Pre-Residency Costs (Sweden to Poland)

When the taxpayer became a Polish tax resident in 2023, they brought a portfolio of assets acquired during their time in Sweden (e.g., Bitcoin bought in 2021). Because Poland taxes global income upon residency, it must also recognize the global costs incurred to generate that future income.[8]

The taxpayer must collate all historical purchases made in Sweden, convert the EUR expenditures to PLN according to historical exchange rates, and enter this cumulative sum into their first Polish PIT-38 (for the year 2023) as a cost incurred in previous years. Even if the taxpayer sold nothing in 2023, filing this return is mandatory to legally establish and register the pre-residency cost pool within the Polish jurisdiction, allowing it to be utilized against future sales in 2024 and 2025.[9]

7. Fiat Localization: Exchange Rates and Allowable Deductions

Because the taxpayer utilized EUR to interact with exchanges like Binance and Kraken, all foreign currency expenditures and revenues must be localized to the Polish Złoty (PLN) before they can be entered into the PIT-38.

7.1. The NBP Preceding Day Rule

According to Article 11a paragraphs 1 and 2 of the PIT Act, revenues and costs expressed in foreign currencies are converted to PLN using the average exchange rate announced by the National Bank of Poland (NBP) from the **last business day directly preceding the day the revenue was obtained or the cost was incurred**.[22]

This rule requires strict chronological precision:

- If the taxpayer sold Bitcoin for 10,000 EUR on Kraken on a Wednesday, the revenue is converted using the NBP mid-rate published on Tuesday.
- If the taxpayer purchased Ethereum for 5,000 EUR on a Sunday, the cost is converted using the NBP mid-rate published on the preceding Friday, as weekends are not business days for the NBP.[24]
- For pre-residency assets acquired in Sweden in 2021, the exact date of the 2021 purchase dictates the 2021 NBP rate used for the conversion, regardless of the fact that the taxpayer only became a Polish resident in 2023.[9]

7.2. Taxonomy of Allowable vs. Non-Allowable Costs

Article 22 paragraph 14 of the PIT Act strictly defines deductible costs as documented expenses directly incurred for the acquisition or disposal of virtual currencies.[3] The distinction between direct and indirect costs is rigidly enforced.

Cost Category	Specific Expense	Deductibility under PIT Act
Direct (Allowable)	Principal fiat used to purchase cryptocurrency	**Yes** (Forms the core cost basis)
Direct (Allowable)	Exchange trading commissions (Maker/Taker fees)	**Yes** (Direct transaction cost) [3]
Direct (Allowable)	Network gas fees tied to a	**Yes** (Facilitates the taxable

	fiat-on/off ramp	event)
Indirect (Prohibited)	Fees incurred purely for crypto-to-crypto swaps	**No** (Swaps are tax-neutral events) [3]
Indirect (Prohibited)	Hardware wallets (Ledger, Trezor)	**No** (Classified as general hardware) [6]
Indirect (Prohibited)	Margin interest or loan costs to fund crypto buys	**No** (Expressly excluded by statute) [3]

Withdrawal fees (e.g., the network fee Kraken charges to send BTC to a cold wallet) occupy a gray area. Generally, if the withdrawal is a necessary step immediately following a fiat purchase to secure the asset, it can be argued as a direct acquisition cost. However, routine transfers between wallets long after acquisition are not deductible.

8. PIT-38 Form Mechanics and Filing Protocols

Cryptocurrency capital gains are reported exclusively on the **PIT-38** form, specifically within **Section E** (entitled *Przychody z odpłatnego zbycia walut wirtualnych*).[2] The deadline for submission is strictly April 30 of the year following the tax year in question (e.g., April 30, 2025, for the 2024 tax year).[3]

8.1. Section E Field Mapping

The PIT-38 form is designed for aggregate reporting; the taxpayer does not list individual trades. While the exact numbering of the fields may shift slightly depending on the specific year's template (2023 vs. 2024), the logical structure of Section E remains identical [2]:

1. **Revenue (Przychód - typically Field 34):** The total PLN equivalent of all fiat received, goods/services purchased, or non-crypto property rights acquired in exchange for virtual currencies during the calendar year.[26]
2. **Current Year Costs (Koszty uzyskania przychodów poniesione w roku podatkowym - typically Field 35):** The total PLN equivalent of all fiat expended to purchase virtual currencies, alongside direct commissions, during the current tax year.[26]
3. **Historical Costs (Koszty z lat ubiegłych - typically Field 36):** Unutilized costs carried forward from previous years' declarations. For the taxpayer's 2023 return, this field would contain the converted PLN sum of all acquisitions made in Sweden prior to residency.[9]
4. **Income (Dochód - typically Field 37):** Calculated mechanically as Revenue minus Total Costs (Current + Historical). If the result is a positive number, this value is transferred to the final tax calculation section (Section F) and taxed at a flat 19%.[2]
5. **Unutilized Costs (Koszty niepotrącone - typically Field 38):** If Total Costs exceed Revenue, the Income is zero. The excess cost value is entered here, serving as the

official ledger entry that allows the taxpayer to carry the protective tax shield over to the following year's PIT-38.[26]

8.2. The Absolute Mandate of the "Zero-Revenue" Return

A critical compliance trap for long-term investors (HODLers) is the mistaken belief that a tax return is only required when selling. Under Polish tax doctrine, a taxpayer **must** file a PIT-38 to declare their acquisition costs in the specific year those costs were incurred, even if they generated zero revenue from disposals.[12]

Failing to register the costs in the current year's PIT-38 forfeits the right to seamlessly carry them forward to offset a massive sale in the future. If a taxpayer bought crypto in 2023 but failed to file a 2023 PIT-38 because they did not sell, they cannot simply claim those 2023 costs on their 2025 return. They must formally submit a retroactive correction (korekta) for the 2023 tax year to establish the cost pool before utilizing it in 2025.[3]

To rectify past omissions without triggering penal sanctions from the fiscal penal code (Kodeks karny skarbowy), the taxpayer should utilize the institution of "czynny żal" (active repentance)—a formal notification to the tax office admitting the delay, accompanied by the immediate submission of the overdue PIT-38 declarations and payment of any accrued default interest.[28]

9. Evidentiary Standards and Auditing Preparedness

Unlike traditional equities, where a Polish brokerage issues a standardized, pre-calculated PIT-8C form to both the taxpayer and the Ministry of Finance, foreign cryptocurrency exchanges (Binance, Kraken) currently have no statutory obligation to issue tax reporting documents to the Polish authorities.[3] The burden of proof rests entirely and heavily on the taxpayer. While the implementation of the EU DAC8 directive will begin forcing centralized exchanges to report user data to local tax authorities by 2026/2027, the calculation of historical costs will remain the taxpayer's responsibility.[29]

9.1. Article 30b Paragraph 6 Record-Keeping Mandates

To substantiate the costs entered into Section E of the PIT-38, Article 30b paragraph 6 of the PIT Act requires the taxpayer to maintain robust, immutable evidence.[11] While a formal, notarized "ewidencja walut wirtualnych" (virtual currency register) is not strictly mandated by a specific state-issued template, the taxpayer's internal documentation must systematically collate the following specific data points for every single acquisition [11]:

1. The type and name of the cryptocurrency.
2. The specific ticker or code (e.g., BTC, DOT, SUI).
3. The precise quantity of the unit acquired.
4. The date and method of acquisition.
5. The exact cost of acquisition in fiat currency.[11]

9.2. Acceptable Source Documentation

Because the decentralized cryptocurrency market relies on digital platforms rather than traditional corporate invoicing, Polish tax authorities accept alternative documentation, provided it reliably confirms the execution of the transaction and the outflow of fiat capital.[11] Acceptable proofs include:

- **Bank Statements:** Official PDF statements from the taxpayer's traditional bank confirming SEPA or SWIFT transfers to the exchange's designated bank accounts. This establishes the irrefutable outflow of fiat.
- **Exchange Trade Histories:** Unaltered CSV or Excel exports downloaded directly from Binance or Kraken detailing the matching engine executions. These files must not be manually edited, as tampering destroys their evidentiary value.[11]
- **Electronic Communications:** Automated emails or platform-generated receipts confirming trade executions or OTC purchases.[11]

For a taxpayer operating across multiple chains and exchanges since 2020, manual reconciliation of these records is highly error-prone. Utilizing third-party crypto-tax reconciliation software is highly recommended to aggregate CSV data and API feeds into coherent reports. However, it is imperative that the software is explicitly configured for the Polish tax logic—disabling standard FIFO matching algorithms and instead generating a unified global cost pool report combined with automated historical NBP daily exchange rate conversions.[31]

By adhering strictly to the cost pooling mechanics, diligently tracking the NBP exchange rates, and isolating fiat events from tax-neutral crypto swaps, the taxpayer can manage a high-volume, multi-chain portfolio efficiently while maintaining full compliance with the Polish PIT-38 framework.

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